

Church Commissioners (Miscellaneous Provisions) Measure 1975

1975 No. 1

A MEASURE passed by the General Synod of the Church of England to make provision for empowering the Church Commissioners to make payments towards the stipend and expenses of the Bishop of Sodor and Man and to make further provision with respect to the pensions of Church Estates Commissioners and their widows.

[1st August 1975]

1.—(1) The Church Commissioners may pay out of their general fund such annual sums as they think expedient to augment the stipend of the Bishop of Sodor and Man and as a contribution towards the expenses incurred by him in connection with the performance of the duties attaching to his office.

Payments by
Commis-
sioners
towards
stipend, etc.
of Bishop of
Sodor and
Man.

(2) Section 3 of the Ecclesiastical Commissioners (Powers) Measure 1936 (power of Church Commissioners to augment income of bishopric of Sodor and Man subject to a limit on the amount of the augmentation), and, in section 12 of that Measure, the words "save as regards section three" are hereby repealed.

1936 No. 5.

(3) This section shall extend to the Isle of Man.

2.—(1) For subsection (1) of section 20 of the Church Property (Miscellaneous Provisions) Measure 1960 (provisions as to pensions of Church Estates Commissioners) there shall be substituted the following subsection:—

Amendment
of provisions
as to pensions
of Church
Estates Com-
missioners
and their
widows.

"(1) The Commissioners shall have power to grant to any First Church Estates Commissioner or Third Church Estates Commissioner who retires from service as such a Commissioner—

1960 No. 1.

(a) if he has performed not less than fifteen years pensionable service, a pension of such amount as the Commissioners may determine not exceeding two-thirds of the salary to which he was entitled under section 9 of the Ecclesiastical Commissioners (Powers) Measure 1938 immediately before retirement;

1938 No. 4.

(b) if he has performed less than fifteen years but not less than five years pensionable service, a pension of such amount as the Commissioners may determine, being an amount not exceeding the aggregate of one third of the salary to which he was so entitled and one thirtieth of that salary for each completed year of pensionable service in excess of five;

- (c) if he has performed less than five years pensionable service but retires by reason of permanent disability for the performance of the duties of his office, a pension of such amount as the Commissioners may determine not exceeding one-third of the salary to which he was so entitled;

and a pension under this subsection shall be payable for the remainder of the life of the person to whom it is granted.

In determining the amount of the pension, if any, to be granted to a person under this subsection the Commissioners shall have regard to any superannuation benefits to which he may be entitled in respect of any other service performed by him before his pensionable service began."

- (2) For subsection (2A) of the said section 20 (provision as to pension of widow of Church Estates Commissioner who dies in office) there shall be substituted the following subsection:—

"(2A) Where a First Church Estates Commissioner or a Third Church Estates Commissioner dies before retirement and leaves a widow, the Commissioners shall have power to grant to his widow, subject to such conditions as they may determine, a pension for the remainder of her life of the following amount, that is to say, one-third of the amount of the pension which in the opinion of the Commissioners they might have granted to the said Commissioner under subsection (1) of this section if he had retired on the day of his death and, if on that day he had performed less than five years pensionable service, he had retired by reason of permanent disability for the performance of the duties of his office."

Short title.

3. This Measure may be cited as the Church Commissioners (Miscellaneous Provisions) Measure 1975.